

TENTATIVE RULING

Case: Palomino Place, LLC v. Davis Joint Unified School District, et al.
Case No. CV-2025-2301

Hearing Date: February 11, 2026 **Department Eleven** **9:00 a.m.**

Motion to strike:

The Court declines to consider new arguments raised by respondents Davis Joint Unified School District and Davis Joint Unified School District Board of Education's in their reply brief. New arguments may not be raised for the first time in a reply brief. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770 [an issue not adequately raised in moving papers is forfeited].)

Respondents' motion to strike portions of petitioner's first amended verified petition for writ of mandate and complaint for declaratory relief as a strategic lawsuit against public participation is **DENIED**. (Code Civ. Proc., § 425.16.) Courts use a two-step process for determining whether an action or a claim is a SLAPP suit subject to a SLAPP motion: "First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity," then, "[i]f the court finds that such a showing has been made, it must then determine whether the plaintiff has demonstrated a probability of prevailing on the claim." (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88.)

The Court finds that respondents fail to submit any evidence that the February 19, 2024, e-mail is a protected activity; thus, have not met their initial burden. (Code Civ. Proc., § 425.16, subd. (e)(2); *Navellier, supra*, 29 Cal.4th at p. 88; *City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78; *City of Costa Mesa v. D'Alessio Investments, LLC* (2013) 214 Cal.App.4th 358, 373; see *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1063 ["[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute."]; First Am. WOM, ¶¶ 2 – 8, fn. 2; see MPA, p. 9, l. 26 – p. 10, l. 3.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Demurrer:

Petitioner Palomino Place, LLC's request for judicial notice is **DENIED**. The proffered document is not relevant to the Court's determination of the demurrer. (Evid. Code, §§ 452, 453; see *People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see also *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Respondents Davis Joint Unified School District and Davis Joint Unified School District Board of Education's demurrer to first amended verified petition for writ of mandate and complaint for declaratory relief is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that petitioner alleges exhaustion of administrative remedies and whether petitioner's exhaustion was sufficient may not be determined on demurrer. (See *Parthemore v. Col* (2013) 221 Cal.App.4th 1372, 1379; see also *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604 [plaintiff's allegations must be accepted as true for the purpose of ruling on a demurrer]; First Am. WOM, ¶ 17.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Sottana v. General Motors LLC**
 Case No. CV2024-2061

Hearing Date: **February 11, 2026** **Department Eleven** **9:00 a.m.**

On the Court's own motion, defendant General Motors LLC's motion to tax counsel's memorandum of costs is **CONTINUED** to **March 17, 2026**, at 9:00 a.m. in Department Eleven. The parties should also be prepared to discuss at the March 17, 2026, hearing why the motions are not premature because no judgment has been entered.